

Environmental Law

LL.B. Semester I – Paper V

Unit-wise Important Questions

5 Marks • 10 Marks (Case Law with Illustrations) • 15 Marks

Unit	5 Marks	10 Marks (case law)	15 Marks
Unit I	8	2	4
Unit II	8	4	4
Unit III	9	5	5
Unit IV	9	4	4
Unit V	10	4	4

How to use: Part A gives short-answer questions, Part B gives case-law questions with a model answer outline (principle, case table and an illustration), and Part C gives long-answer questions with the key points to cover. For citations in the examination, cross-check against the law report or your prescribed readings.

Unit-I: Meaning, Ecological Concepts and Pollution

Part A — 5 Marks Questions

1. Define 'environment' as per Section 2(a) of the Environment (Protection) Act, 1986.
2. What is an ecosystem? Explain its biotic and abiotic components.
3. Write a short note on the biosphere and biomes.
4. Explain the causes and effects of ozone depletion.
5. What is global warming? Explain the greenhouse effect and its consequences.
6. Distinguish between preservation, conservation and protection of the environment.
7. Explain the ancient Indian approach to the environment.
8. Write short notes on the kinds of pollution (air, water, land, noise) with their causes and effects.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the Doon Valley case (Rural Litigation and Entitlement Kendra v. State of U.P.) and its contribution to the law on ecological balance and the right to a healthy environment. Illustrate.

Principle: The need to protect the environment rests on preserving ecological balance for present and future generations. Indian courts first confronted the conflict between mining-led livelihood and ecological balance in the Doon Valley litigation, and resolved it in favour of protecting the ecosystem.

Rural Litigation and Entitlement Kendra v. State of U.P.	
Citation	AIR 1985 SC 652 (Doon Valley / Mussoorie limestone quarries case)
Facts	A letter-petition complained that limestone quarrying in the Mussoorie hills of the Doon Valley was causing deforestation, soil erosion, silting and drying up of natural water springs. The Supreme Court treated it as a writ petition and appointed an expert committee to inspect the quarries.
Issue	Should quarrying be allowed to continue for economic reasons even though it damages the ecological balance of the hills?
Held	On the committee's report, the Court ordered the closure of the quarries that were causing serious damage and regulated the rest. It accepted that closure would cause hardship to those dependent on the mines, but held that this was a price that had to be paid to safeguard the people's right to live in a healthy environment with minimal disturbance of ecological balance.
Significance	One of the first Indian cases to deal squarely with environmental degradation and ecological balance; it paved the way for reading the right to a healthy environment into Article 21 and for sustainable development as a judicial standard.

Illustration

A cement company runs a limestone quarry on a hillside above a village. Blasting has destroyed the tree cover, the village stream has dried up, and silt is clogging the downstream irrigation channel. Applying the Doon Valley principle, a court may, after an expert inspection, order the quarry closed or restricted despite the loss of jobs, because the villagers' right to a healthy environment and a sustainable water source outweighs short-term economic gain.

Q2. Explain the doctrine of sustainable development with reference to Vellore Citizens' Welfare Forum v. Union of India. Illustrate.

Principle: Sustainable development means development that meets present needs without compromising the ability of future generations to meet theirs. Two principles flow from it: the precautionary principle and the polluter pays principle.

Vellore Citizens' Welfare Forum v. Union of India	
Citation	(1996) 5 SCC 647
Facts	Tanneries in Tamil Nadu discharged untreated effluents into agricultural fields, roadsides and the Palar river, polluting drinking-water sources and land over a large area of the Vellore region.
Issue	Can the tanneries be allowed to continue for their economic and export value, and on what principles is liability for the ecological damage to be fixed?
Held	The Court held that sustainable development, the precautionary principle and the polluter pays principle are part of the environmental law of India, drawing on Articles 21, 47, 48A and 51A(g) and the Environment (Protection) Act. The burden of proving that an activity is environmentally benign lies on the industry. Polluting tanneries were made liable to pay compensation and the cost of restoring the damaged ecology, and an authority was directed to be set up under the Environment (Protection) Act to assess loss and enforce restoration.
Significance	The leading Indian authority that incorporated international environmental principles into domestic law without needing a separate statute.

Illustration

A dye-manufacturing unit is proposed beside a lake that supplies drinking water. Under the precautionary principle the unit must first prove that its effluent will not harm the lake; lack of scientific certainty is no ground to allow it. If it pollutes anyway, under the polluter pays principle it must fund the clean-up and compensate affected villagers.

Part C — 15 Marks Questions

1. **Define environment. Explain the concepts of ecology, ecosystem, biosphere and biomes, and discuss the need for the preservation, conservation and protection of the environment.**

Key points: Section 2(a) EPA definition; biotic/abiotic components; biosphere and biomes; sustainable development and inter-generational equity; preservation vs conservation vs protection.

2. **Discuss the kinds, causes and effects of environmental pollution.**

Key points: Air, water, land, noise, thermal, radioactive and marine pollution; industrial, vehicular and agricultural causes; effects on health, ecology and climate; statutory definitions in Section 2 EPA.

3. **Explain ozone depletion and global warming. Discuss their causes, effects and the legal and international responses to them.**

Key points: CFCs; Vienna Convention and Montreal Protocol; greenhouse gases; UNFCCC, Kyoto Protocol and Paris Agreement; India's role.

4. **Discuss the ancient Indian approach to the environment and its relevance to the modern environmental legal regime.**

Key points: Vedic and Upanishadic reverence for nature; sacred groves; Ashoka's edicts; Dharma and duties; link to Articles 48A and 51A(g).

Unit-II: Common Law Remedies and Procedural Provisions

Part A — 5 Marks Questions

1. Explain trespass as a common law remedy against pollution.
2. Explain negligence as a remedy against pollution.
3. State the rule of strict liability in Rylands v. Fletcher and its exceptions.
4. Distinguish between the rules of strict liability and absolute liability.
5. Explain the summary procedure for removal of public nuisance under Section 133 of the Cr.P.C. (corresponding BNSS provision).
6. Explain Section 91 of the Code of Civil Procedure in relation to public nuisance.
7. Explain the role of injunctions under the Specific Relief Act, 1963 in pollution cases.
8. Write a short note on the Noise Pollution (Regulation and Control) Rules, 2000.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the rule of absolute liability as laid down in M.C. Mehta v. Union of India (Oleum Gas Leak case) and distinguish it from the rule in Rylands v. Fletcher. Illustrate.

Principle: Rylands v. Fletcher imposes strict liability for the escape of a dangerous thing brought on to land for a non-natural use, subject to exceptions such as act of God, act of a stranger and plaintiff's default. The Supreme Court found this rule inadequate for modern hazardous industry and evolved a stricter indigenous rule.

Rylands v. Fletcher	
Citation	(1868) LR 3 HL 330
Facts	Water stored in a reservoir built by the defendant escaped through old mine shafts and flooded the plaintiff's neighbouring coal mine.
Issue	Is a person who brings a dangerous thing on his land liable for its escape even without negligence?
Held	Yes. A person who for his own purposes brings and keeps on his land anything likely to do mischief if it escapes must keep it at his peril and is liable for all damage that naturally results from its escape.
Significance	Foundation of the rule of strict liability; the Indian Supreme Court later moved beyond it.

M.C. Mehta v. Union of India (Oleum Gas Leak case)	
Citation	(1987) 1 SCC 395; AIR 1987 SC 1086
Facts	Oleum gas leaked from a unit of Shriram Foods and Fertilizer Industries in Delhi, causing injury to many people and the death of an advocate.
Issue	What is the standard of liability of an industry carrying on a hazardous activity, and is the rule in Rylands v. Fletcher to be followed?
Held	The Court declined to follow the English rule with its exceptions and laid down the rule of absolute liability: an enterprise engaged in a hazardous or inherently dangerous activity owes an absolute and non-delegable duty to the community and must compensate all those affected by an accident, without being able to plead the exceptions to Rylands v. Fletcher. Compensation must be correlated to the size and capacity of the enterprise so that it has a deterrent effect.
Significance	Made India's liability regime for hazardous industry stricter than English law; later reflected in the Public Liability Insurance Act, 1991 and the National Green Tribunal Act, 2010.

Illustration

A chemical plant stores toxic gas. A sabotage by a third party causes a leak that injures nearby residents. Under *Rylands v. Fletcher* the plant could plead the act of a stranger. Under absolute liability it cannot; it must pay compensation, and the amount can be set high in proportion to its turnover.

Q2. Explain the polluter pays principle and absolute liability with reference to Indian Council for Enviro-Legal Action v. Union of India (Bichhri case). Illustrate.

Principle: Under the polluter pays principle the polluter bears the cost of remedying the damage caused, rather than the public exchequer or the victims.

Indian Council for Enviro-Legal Action v. Union of India	
Citation	(1996) 3 SCC 212 (Bichhri case)
Facts	Chemical industries in Bichhri village, Rajasthan, produced H-acid and other chemicals and discharged highly toxic sludge and waste water, which polluted the soil and the underground water and ruined the agricultural land and wells of the villagers.
Issue	Who bears the liability and the cost of remedying the damage caused by industries carrying on hazardous activity in violation of law?
Held	The Court applied the rule of absolute liability from <i>M.C. Mehta</i> and held that the polluters were liable to bear the cost of remedial measures and to compensate the villagers, and that the polluter pays principle is part of the law of the land. The industries could not escape liability by pleading that their activity was lawful or beneficial, and the Court directed that the costs be recovered from them.
Significance	Established that the remediation cost of environmental damage is to be borne by the polluter, with the burden of proof and financial responsibility on the industry.

Illustration

A pesticide factory dumps sludge on open land, contaminating the groundwater in an adjoining village. The village wells become unusable. The factory must pay for treating the water and restoring the land and compensate affected farmers; it cannot argue that the district authorities never stopped it.

Q3. Explain the summary remedy for public nuisance in pollution cases with reference to Municipal Council, Ratlam v. Vardhichand. Illustrate.

Principle: Section 133 of the Cr.P.C. (with its counterpart under the BNSS) empowers an Executive Magistrate to make a conditional order for the removal of a public nuisance. It gives a swift, inexpensive remedy against pollution such as stench and open drains.

Municipal Council, Ratlam v. Vardhichand	
Citation	(1980) 4 SCC 162
Facts	Residents of a locality in Ratlam town complained that open drains, human excreta and effluents from a nearby alcohol plant made life unbearable. The Magistrate, acting under Section 133 Cr.P.C., ordered the Municipality to construct drains and public conveniences. The Municipality pleaded lack of funds.
Issue	Can a municipal body plead financial inability to escape its statutory duty to abate a public nuisance?
Held	The Supreme Court (Krishna Iyer J.) upheld the Magistrate's order. A statutory duty to provide sanitation cannot be excused on the ground of paucity of funds; the courts can compel public authorities to perform their obligatory functions in the interest of community health. Section 133 is a public duty, and the residents have standing to invoke it.

Significance	Turned Section 133 into a tool of environmental justice and showed that the judiciary can enforce positive obligations on local bodies.
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Illustration

A municipality has left a stretch of open sewage drain running beside a residential colony for years, and mosquitoes and foul smell have caused illness. The residents apply to the Sub-Divisional Magistrate. Following *Ratlam*, the Magistrate can order the municipality to cover or repair the drain within a fixed time, and the municipality cannot avoid it by pleading a shortage of money.

Q4. Explain the legal control of noise pollution with reference to Church of God (Full Gospel) in India v. K.K.R. Majestic Colony Welfare Association. Illustrate.

Principle: Noise is regulated in India by the Noise Pollution (Regulation and Control) Rules, 2000 under the Environment (Protection) Act, 1986, prescribing ambient noise standards for zones and restricting loudspeakers at night, along with nuisance remedies at common law.

Church of God (Full Gospel) in India v. K.K.R. Majestic Colony Welfare Association	
Citation	(2000) 7 SCC 282
Facts	Residents of a colony complained about noise from a church's loudspeakers, drums and other amplifiers during prayers, which disturbed the neighbourhood. The Church claimed that its use of amplifiers was part of its religious freedom under Article 25.
Issue	Does the freedom of religion include the right to use loudspeakers and amplifiers regardless of the disturbance to others?
Held	The Court held that no religion prescribes or preaches that prayers should be performed through voice amplifiers or by beating drums; Article 25 is subject to public order, morality and health. Undue noise violates Article 21 and other citizens' right to peace, and permission to use amplifiers may be refused or regulated without violating religious freedom.
Significance	Confirmed noise pollution as a violation of the right to a peaceful environment and subordinated religious use of loudspeakers to the rights of others.

Illustration

A festival committee installs high-power speakers at 11 p.m. near a hospital, which is a silence zone. Residents complain. Applying this case and the 2000 Rules, the authorities may confiscate the equipment or refuse permission, and the committee cannot defend itself by claiming a religious or cultural right.

Part C — 15 Marks Questions

- Discuss the common law remedies available against pollution.**
Key points: Trespass, negligence, private and public nuisance; damages and injunction; limitations of common law; move to statutory regulation.
- Trace the evolution of the rules of strict liability and absolute liability. How has the Indian Supreme Court developed the law relating to liability for environmental harm?**
Key points: *Rylands v. Fletcher* and its exceptions; *M.C. Mehta (Oleum)*; *Bichhri* case; *Bhopal*; *Public Liability Insurance Act*; *NGT Act*.
- Explain the remedies available for abatement of public nuisance in pollution cases under the BNS, BNSS, Code of Civil Procedure and the Specific Relief Act.**
Key points: BNS provisions on public nuisance; Section 133 Cr.P.C. (BNSS counterpart); *Ratlam* case; Section 91 CPC; injunctions under *Specific Relief Act*.
- Discuss the legal framework for the control of noise pollution in India.**
Key points: Noise Pollution Rules, 2000; zone-wise standards; silence zones; *Church of God* case; Article 21; nuisance remedies; loudspeaker restrictions.

Unit-III: Pollution Control Legislation, Natural Resources and Tribunals

Part A — 5 Marks Questions

1. Explain the salient features of the Forest (Conservation) Act, 1980.
2. Explain the provisions of the Wild Life (Protection) Act, 1972 relating to sanctuaries and national parks.
3. Write a short note on the Coastal Regulation Zone (CRZ) Notification.
4. Explain the role of the Animal Welfare Board under the Prevention of Cruelty to Animals Act, 1960.
5. What are the functions of the Central and State Pollution Control Boards under the Water Act, 1974?
6. Explain the concept of 'air pollution control area' and the consent mechanism under the Air Act, 1981.
7. Explain the powers of the Central Government under Sections 3 and 6 of the Environment (Protection) Act, 1986.
8. Write a short note on the National Biodiversity Authority under the Biological Diversity Act, 2002.
9. Write a short note on the National Green Tribunal.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the judicial approach to forest conservation with reference to T.N. Godavarman Thirumulpad v. Union of India. Illustrate.

Principle: The Forest (Conservation) Act, 1980 restricts the de-reservation of forest land and its use for non-forest purposes without prior approval of the Central Government.

T.N. Godavarman Thirumulpad v. Union of India	
Citation	(1997) 2 SCC 267
Facts	Originally a petition to protect a forest estate in the Nilgiris, it was expanded by the Supreme Court into a continuing proceeding on forest conservation across the country, because of large-scale illegal felling and timber trade.
Issue	What is a 'forest' for the purposes of the Forest (Conservation) Act, and does the Act apply to all forests irrespective of ownership or classification?
Held	The Court held that the word 'forest' must be understood according to its dictionary meaning, covering all statutorily recognised forests and areas that are forests in fact, whoever owns them. The Act applies to them all. It suspended felling of trees in forests without central approval, regulated saw mills, and set up committees to monitor compliance through a continuing mandamus.
Significance	Extended forest protection far beyond notified reserves and made the Supreme Court a continuing supervisor of forest governance.

Illustration

A private landowner in a hilly district has a dense forest patch that has never been formally notified as a forest and decides to clear it for a resort. Under Godavarman the patch may still be a 'forest' by its character, so the clearing needs prior approval under the Forest (Conservation) Act, and unauthorised felling can be stopped.

Q2. Explain the judicial control of water pollution with reference to M.C. Mehta v. Union of India (Ganga pollution / tanneries case). Illustrate.

Principle: The Water (Prevention and Control of Pollution) Act, 1974 requires industries to obtain the consent of the State Pollution Control Board before discharging effluents and empowers the Board to restrict or close polluting units.

M.C. Mehta v. Union of India (Ganga Pollution - Tanneries case)

Citation	(1988) 1 SCC 471
Facts	The petitioner sought action against the Kanpur tanneries and municipal bodies that discharged untreated trade effluent and sewage into the river Ganga.
Issue	Can a public-spirited person who is not a riparian owner sue to prevent river pollution, and can polluting industries be closed despite the economic and employment consequences?
Held	The Court held that the petitioner had standing to sue in the interest of the public. It directed tanneries to set up primary treatment plants and directed the closure of those that failed to do so, holding that financial hardship to the industry cannot be a ground to allow pollution of a river, and it also called on municipal bodies to treat sewage. It linked its directions to the Water Act and to Articles 48A and 51A(g).
Significance	Expanded locus standi in environmental cases and established that an industry has no right to function without pollution-control measures.

Illustration

A sugar mill discharges untreated effluent into a river from which nearby towns draw their drinking water. A local activist, though not a landowner along the river, files a petition. Following this case, the court can entertain the petition and direct the mill to install a treatment plant or shut down until it complies.

Q3. Explain the application of the precautionary principle to air pollution with reference to *M.C. Mehta v. Union of India (Taj Trapezium case)*. Illustrate.

Principle: The Air (Prevention and Control of Pollution) Act, 1981 controls emissions through pollution control boards, consent to operate and emission standards. Where scientific certainty is lacking, the precautionary principle calls for preventive action.

M.C. Mehta v. Union of India (Taj Trapezium case)	
Citation	(1997) 2 SCC 353
Facts	Emissions from industries and the use of coal and coke in the area around the Taj Mahal at Agra were alleged to be discolouring and damaging the monument through acid rain and pollution.
Issue	Can industries within the Taj Trapezium Zone be restricted or relocated to protect the monument, and what is the burden on the industries?
Held	The Court directed the industries in the Taj Trapezium Zone to change over to natural gas as an industrial fuel or to relocate outside the zone, applying the precautionary principle and sustainable development, and stated that the industries bore the burden of showing that they did not harm the Taj.
Significance	A landmark application of the precautionary principle to air pollution and the protection of cultural heritage.

Illustration

Coal-fired brick kilns operate near a heritage fort, and a study suggests that their emissions may be eroding the stone. Even without conclusive proof, the precautionary principle would justify restricting the kilns or requiring them to switch to cleaner fuel.

Q4. Explain the judicial approach to the protection of animals with reference to Animal Welfare Board of India v. A. Nagaraja. Illustrate.

Principle: The Prevention of Cruelty to Animals Act, 1960 penalises unnecessary pain and suffering to animals and is supported by Article 51A(g), which makes compassion for living creatures a fundamental duty.

Animal Welfare Board of India v. A. Nagaraja	
Citation	(2014) 7 SCC 547 (Jallikattu case)
Facts	The Animal Welfare Board challenged the conduct of Jallikattu and bullock-cart races in Tamil Nadu, where bulls were allegedly subjected to pain and cruelty.
Issue	Do such events violate the Prevention of Cruelty to Animals Act, and how far do animals enjoy rights?
Held	The Court held that Jallikattu and similar events violate the Act and banned them. It recognised the 'five freedoms' of animals (freedom from hunger and thirst, discomfort, pain and injury, fear and distress, and freedom to express normal behaviour) and read the concept of life in Article 21 broadly, emphasising the duty of compassion under Article 51A(g).
Significance	Strengthened animal welfare as part of constitutional environmental values. Later legislative changes in Tamil Nadu led to further litigation on the subject.

Illustration

A village fair plans a contest in which animals are tied and provoked for entertainment. Following this case, the organisers can be restrained and prosecuted under the 1960 Act, and a claim that the event is a tradition is no defence to cruelty.

Q5. Explain the role of the precautionary principle and the need for specialised environmental adjudication with reference to A.P. Pollution Control Board v. Prof. M.V. Nayudu. Illustrate.

Principle: The National Green Tribunal Act, 2010 created a specialised forum with judicial and expert members to decide environmental disputes; the need for such expert bodies was highlighted by the Supreme Court in earlier cases.

A.P. Pollution Control Board v. Prof. M.V. Nayudu	
Citation	(1999) 2 SCC 718
Facts	A hazardous chemical industry was proposed within the catchment area of the Himayat Sagar and Osman Sagar lakes, which supply drinking water to Hyderabad. The question was whether it could be permitted to be located there.
Issue	How should courts decide on complex scientific issues and on the burden of proof in environmental matters?
Held	The Court applied the precautionary principle and held that the onus of proof lies on the industry proposing the activity to show that it is not harmful. It also stressed the need for environmental courts or authorities with both judicial and technical members, since environmental cases involve scientific issues that regular courts are not equipped to handle.
Significance	Led to the push for specialised environmental adjudication and influenced the later creation of the National Green Tribunal.

Illustration

A firm proposes a waste-treatment facility near a reservoir that supplies a city. The residents fear contamination. Following Nayudu, the firm must first show with expert evidence that the facility is safe, and the dispute is best heard by an expert body such as the National Green Tribunal.

Part C — 15 Marks Questions

1. **Discuss the provisions of the Water (Prevention and Control of Pollution) Act, 1974 relating to the pollution control boards, consent mechanism and penalties.**
Key points: Article 252; CPCB and SPCBs; consent to establish; standards; closure and penalties; judicial approach in the Ganga cases.
2. **Explain the salient features of the Air (Prevention and Control of Pollution) Act, 1981. How does it control air pollution?**
Key points: Stockholm background; air pollution control areas; consent; emission standards; powers of boards; penalties; Taj Trapezium case.
3. **Critically evaluate the Environment (Protection) Act, 1986 as an umbrella legislation.**
Key points: Bhopal background; definitions; Sections 3, 5, 6; rules and notifications (EIA, CRZ, Noise, Hazardous Waste); penalties; strengths and weaknesses.
4. **Discuss the legal framework for the protection of forests, wildlife and endangered species in India.**
Key points: Indian Forest Act, 1927; Forest (Conservation) Act, 1980; Forest Rights Act, 2006; Wild Life (Protection) Act, 1972; sanctuaries, national parks, schedules; Godavarman case.
5. **Explain the establishment, jurisdiction, powers and functions of the National Green Tribunal. How does it improve on the earlier environmental tribunals?**
Key points: NET Act 1995 and NEAA Act 1997; NGT Act 2010; seven statutes; original and appellate jurisdiction; principles in Section 20; appeal to Supreme Court.

Unit-IV: Constitutional Dimensions and Judicial Role

Part A — 5 Marks Questions

1. Explain Article 48A of the Constitution.
2. Explain Article 51A(g) of the Constitution.
3. Explain the right to a wholesome environment under Article 21.
4. Write a short note on the doctrine of sustainable development.
5. Explain the precautionary principle.
6. Explain the polluter pays principle.
7. Explain the public trust doctrine.
8. Explain the legislative powers of the Centre and the States over environmental matters.
9. Write a short note on green belt development: its purpose and advantages.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain how the right to a pollution-free environment forms part of Article 21 with reference to Subhash Kumar v. State of Bihar. Illustrate.

Principle: Although the Constitution has no express right to environment, the Supreme Court has read the right to a wholesome environment into the right to life under Article 21.

Subhash Kumar v. State of Bihar	
Citation	(1991) 1 SCC 598
Facts	The petitioner alleged that the discharge of slurry from a washery of a company into the Bokaro river polluted the water and affected people. It emerged that he had a personal dispute with the company.
Issue	Does the right to life under Article 21 include the right to pollution-free water and air, and can a petition be entertained if it is not filed in the public interest?
Held	The Court held that the right to live includes the right to enjoyment of pollution-free water and air for the full enjoyment of life, and that a citizen may invoke Article 32 in such cases. However, it dismissed the petition because it was not bona fide and was filed to serve a private interest, warning against misuse of public interest litigation.
Significance	A leading authority on Article 21 and the environment, and a caution on the limits of PIL.

Illustration

Villagers sue a distillery that pollutes their drinking water. They can invoke Article 32 or 226 on the basis of Article 21. If, however, a competing distillery owner files the same petition only to harm its rival, the court may dismiss it as lacking bona fides.

Q2. Explain the relationship between the right to development and environmental protection with reference to Narmada Bachao Andolan v. Union of India. Illustrate.

Principle: Sustainable development seeks a balance between economic growth and environmental protection. Courts allow developmental projects subject to safeguards such as environmental clearance and rehabilitation.

Narmada Bachao Andolan v. Union of India	
Citation	(2000) 10 SCC 664

Facts	The petitioners challenged the construction of the Sardar Sarovar dam on the Narmada river, citing displacement of tribal and rural people, loss of forests and inadequate environmental study and rehabilitation.
Issue	Should the project be stopped on environmental and rehabilitation grounds, or allowed to proceed subject to conditions?
Held	By majority, the Court allowed the construction of the dam to continue in stages, subject to the implementation of rehabilitation and resettlement measures and environmental safeguards, and held that courts should be slow to interfere with policy decisions on large projects where the government has considered the environmental impact.
Significance	Illustrates how the courts balance development with environmental concerns and shows the limits of judicial interference in project decisions.

Illustration

A state builds an irrigation canal that will bring water to a drought-prone region but will submerge some farmland and a strip of forest. A court is likely to permit it if there is an environmental impact assessment, compensatory afforestation and fair rehabilitation of displaced families, rather than stopping it altogether.

Q3. Explain the public trust doctrine with reference to M.C. Mehta v. Kamal Nath. Illustrate.

Principle: Under the public trust doctrine, the State holds certain natural resources such as rivers, forests and seashores as a trustee for the public and cannot hand them over for private commercial use in a manner that defeats public interest.

M.C. Mehta v. Kamal Nath	
Citation	(1997) 1 SCC 388
Facts	A private motel company, linked to a Minister's family, built a motel on the bank of the river Beas in Himachal Pradesh on forest land leased to it, and the flow of the river was diverted by the construction. The matter was brought before the Supreme Court through a public interest petition.
Issue	Can the State lease ecologically fragile riverbank land to a private party for commercial use?
Held	The Court applied the public trust doctrine, which it traced to Roman and English law, and held that the State as a trustee could not allow the natural resource to be used for private commercial gain in a way that affected the public. The lease was set aside, and the polluter was made to pay compensation for the restoration of the environment under the polluter pays and exemplary damages principles.
Significance	Introduced the public trust doctrine into Indian environmental law and limited the State's power to alienate natural resources.

Illustration

A state government leases a public lakeshore to a builder who plans a private resort that will fill part of the lake. Applying Kamal Nath, the lease may be quashed, since the lake is held in trust for the public, and the developer may be required to restore the site at its own cost.

Q4. Explain Article 31C and its treatment by the Supreme Court with reference to Minerva Mills Ltd. v. Union of India. Illustrate.

Principle: Article 31C protects laws giving effect to specified Directive Principles from being challenged for violating Articles 14 and 19. The 42nd Amendment attempted to extend that protection to all Directive Principles, which included Article 48A.

Minerva Mills Ltd. v. Union of India

Citation	(1980) 3 SCC 625
Facts	The petitioner, a textile company whose management had been taken over, challenged the validity of Sections 4 and 55 of the Constitution (42nd Amendment) Act, 1976, which extended Article 31C to all Directive Principles and restricted judicial review of amendments.
Issue	Is the amended Article 31C and the ouster of judicial review consistent with the basic structure of the Constitution?
Held	The Court struck down the extension of Article 31C to all Directive Principles as violating the basic structure, because it would upset the balance between Fundamental Rights and Directive Principles. Article 31C therefore remained confined to laws giving effect to Article 39(b) and (c) (as upheld earlier in <i>Kesavananda Bharati</i>), and Article 48A does not enjoy this wider immunity.
Significance	Confirms that environmental Directive Principles must be harmonised with Fundamental Rights and are subject to judicial review.

Illustration

A State passes a law banning industries in a green zone and states in it that the law implements Article 48A. If a factory challenges it for violating Article 19(1)(g), the law cannot claim automatic immunity under Article 31C; it must justify itself as a reasonable restriction in the public interest.

Part C — 15 Marks Questions

- Discuss the constitutional provisions relating to environmental protection in India, including Articles 48A, 51A(g) and 21.**
Key points: Directive Principle; Fundamental Duty; Article 21 and the right to wholesome environment; *Subhash Kumar; Doon Valley; enforcement through Articles 32 and 226.*
- Discuss the role of the Indian judiciary in the evolution of environmental jurisprudence.**
Key points: PIL and locus standi; *M.C. Mehta* cases; sustainable development, precautionary, polluter pays, public trust; continuing mandamus; *Vellore; Kamal Nath; Godavarman.*
- Examine the conflict between the right to development and environmental protection. How far can trade, profession and business be restricted for protecting the environment?**
Key points: Article 19(1)(g) and 19(6); *Narmada Bachao Andolan; Taj Trapezium; Ganga case; Article 31C and Minerva Mills.*
- Discuss the legislative powers of the Centre and the States over environmental matters and the role of writ jurisdiction under Articles 32 and 226.**
Key points: Seventh Schedule entries; Articles 252 and 253; *Water Act and Air Act; PIL; remedies and limits of writ jurisdiction; green belt conditions.*

Unit-V: International Environmental Law

Part A — 5 Marks Questions

1. Explain the important principles of the Stockholm Declaration, 1972.
2. Explain the role of UNEP in the protection of the environment.
3. Write a short note on the Ramsar Convention, 1971.
4. Write a short note on the Bonn Convention on Migratory Species.
5. Explain the Vienna Convention and the Montreal Protocol on ozone depletion.
6. Write a short note on the Convention on Biological Diversity, 1992.
7. Explain the Kyoto Protocol and the Clean Development Mechanism.
8. Explain the principle of 'common but differentiated responsibilities' under the UNFCCC.
9. Write a short note on the Paris Agreement and Nationally Determined Contributions.
10. Write a short note on the Johannesburg Summit, 2002.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the principle of State liability for transboundary pollution with reference to the Trail Smelter Arbitration. Illustrate.

Principle: A State must not use or permit the use of its territory so as to cause serious harm to the territory of another State. This principle later found expression in Principle 21 of the Stockholm Declaration.

Trail Smelter Arbitration (United States v. Canada)	
Citation	3 RIAA 1905 (1938 and 1941)
Facts	A smelter at Trail in British Columbia, Canada, released sulphur dioxide fumes that drifted across the border and damaged crops, forests and land in the State of Washington, USA.
Issue	Is Canada responsible for the damage caused in the United States by the private smelter operating in its territory?
Held	The arbitral tribunal held that under the principles of international law, no State has the right to use or permit the use of its territory in such a manner as to cause injury by fumes in or to the territory of another State, where the case is of serious consequence and the injury is established by clear and convincing evidence. Canada was held responsible, compensation was awarded and a regime for controlling the smelter's emissions was laid down.
Significance	The foundational authority for State responsibility for transboundary environmental harm.

Illustration

A power plant close to the border of Country A emits smoke that regularly causes acid rain in the neighbouring Country B, damaging its farms. Following Trail Smelter, Country A is answerable to Country B for failing to regulate the plant, and may be required to pay compensation and reduce emissions.

Q2. Explain the liability of multinational corporations for environmental disasters with reference to the Bhopal Gas Tragedy litigation. Illustrate.

Principle: Multinational enterprises operating in host countries can cause disasters whose victims find it hard to obtain compensation, raising questions of forum, liability and enforcement against a foreign parent company.

Union Carbide Corporation v. Union of India

Citation	(1989) 1 SCC 674
Facts	In December 1984, methyl isocyanate gas leaked from the Union Carbide India Ltd. plant at Bhopal, killing thousands and injuring several lakh people. The Government of India, under the Bhopal Gas Leak Disaster (Processing of Claims) Act, 1985, represented the victims as <i>parens patriae</i> and sued the parent company.
Issue	Could the disaster claims be settled, and on what terms, between the Government and the multinational parent?
Held	The Supreme Court recorded and approved a settlement under which Union Carbide would pay 470 million US dollars in full and final settlement of all claims arising from the disaster.
Significance	Showed the difficulty of holding a multinational fully accountable and gave rise to strong criticism over the adequacy of the settlement.

Charan Lal Sahu v. Union of India

Citation	(1990) 1 SCC 613
Facts	The validity of the Bhopal Gas Leak Disaster (Processing of Claims) Act, 1985, and of the Government's role as representative of the victims, was challenged.
Issue	Is the Act constitutionally valid, and can the State represent the victims?
Held	The Court upheld the Act and the State's power to act as <i>parens patriae</i> for the victims.
Significance	Validated the State's role as guardian of victims in mass-tort disasters.

Illustration

A foreign parent company runs a subsidiary that operates a chemical plant abroad. A leak harms local residents, and the parent argues that only the local subsidiary is responsible. Drawing on Bhopal and the absolute liability principle, the host State may pursue the parent company and demand full compensation and clean-up.

Q3. Explain the concept of sustainable development in international law with reference to the Gabčíkovo-Nagymaros Project case. Illustrate.

Principle: Sustainable development seeks to reconcile economic development with environmental protection. It is reflected in the Stockholm Declaration, the Rio Declaration and the Johannesburg Summit.

Gabčíkovo-Nagymaros Project (Hungary v. Slovakia)

Citation	ICJ Reports 1997, p. 7
Facts	Hungary and Czechoslovakia entered into a 1977 treaty to build a system of dams on the Danube. Hungary suspended and later abandoned work, citing environmental risks; Czechoslovakia (and later Slovakia) went ahead with an alternative diversion of the river.
Issue	Was Hungary entitled to terminate the treaty on environmental grounds, and was the unilateral diversion lawful?
Held	The International Court of Justice held that Hungary was not entitled to abandon the project and that the unilateral diversion by Slovakia was also unlawful. The Court recognised the need to reconcile economic development with environmental protection, referred to the concept of sustainable development, and said that new environmental norms must be taken into account in carrying out the treaty, and it directed the parties to negotiate in good faith.
Significance	One of the first ICJ decisions to recognise sustainable development in an international dispute.

Illustration

Two neighbouring countries agree on a hydropower project on a shared river. Later, scientists show that it threatens fish and wetlands. Under the Gabčíkovo approach, neither can simply abandon or override the treaty, but they must renegotiate to reflect the environmental standards that have emerged.

Q4. Explain the duty to conduct an environmental impact assessment for transboundary projects with reference to the Pulp Mills on the River Uruguay case. Illustrate.

Principle: States must prevent significant transboundary harm and cooperate with potentially affected States, notify them and consult them before undertaking risky projects.

Pulp Mills on the River Uruguay (Argentina v. Uruguay)	
Citation	ICJ Reports 2010, p. 14
Facts	Argentina alleged that Uruguay had authorised the construction of pulp mills on the River Uruguay, which formed their boundary, without proper prior notification and consultation and that the mills would pollute the river.
Issue	Had Uruguay violated its obligations under the 1975 Statute of the River Uruguay and general international law?
Held	The Court held that Uruguay had breached its procedural obligations to inform and notify Argentina, but not its substantive obligations against pollution. It observed that conducting an environmental impact assessment is a requirement under general international law where a proposed industrial activity may have a significant adverse impact in a transboundary context.
Significance	Confirmed the duty of prevention and the obligation to carry out an environmental impact assessment in international law.

Illustration

Country X plans a large mine on a river shared with Country Y. It must notify Country Y, share the environmental impact assessment and consult it before granting approval; if X goes ahead without doing so, it commits a procedural breach even before any harm occurs.

Part C — 15 Marks Questions

- Discuss the Stockholm Declaration, 1972 and the role of UNEP in the development of international environmental law.**
Key points: 26 principles; Principle 21; link between environment and development; creation of UNEP; its role in the Vienna Convention, Montreal Protocol, CBD and Basel Convention; impact on India (Article 253, EPA).
- Explain the international climate change regime: the UNFCCC, the Kyoto Protocol and the Paris Agreement.**
Key points: Common but differentiated responsibilities; COP; Kyoto targets and CDM; Paris NDCs, 1.5 and 2 degree goals, stocktake; India's commitments.
- Discuss the international conventions for the protection of wetlands, migratory species, the ozone layer and biodiversity.**
Key points: Ramsar 1971; Bonn 1979; Vienna 1985 and Montreal 1987; CBD 1992 and Earth Summit; Johannesburg 2002; India's Biological Diversity Act.
- Discuss the liability of States and multinational corporations for transnational environmental harm.**
Key points: Customary law; Trail Smelter; Principle 21; Gabčíkovo-Nagymaros; Pulp Mills; Bhopal Gas Tragedy; corporate accountability.